Chapter 3
Protecting Underwater Cultural Heritage Under the BBNJ Agreement

Duncan Currie

Abstract Deep sea mining (DSM) has the potential to impact underwater cultural heritage, both tangible and intangible. The BBNJ Agreement will have implications for any underwater cultural heritage affected by DSM activities under its focus on marine biodiversity, its provisions on EIAs including strategic environmental assessments (SEAs) and ABMTs, and for its specific recognition of cultural values. It also has implications for the positions of BBNJ Parties when participating in the International Seabed Authority (ISA). Traditional knowledge is mainstreamed throughout the BBNJ Agreement, as is consultation and transparency. Protecting underwater cultural heritage under the BBNJ Agreement is likely to involve extensive consultation with both the ISA and UNESCO. Cultural matters as well as traditional knowledge are specifically included in both the ABMT and the EIA parts of the Agreement, but are also likely to arise in other contexts, including capacity building and the transfer of marine technology. Once BBNJ enters into force, international cooperation provisions including with respect to the ISA where activities in the Area are concerned and UNESCO when underwater cultural heritage or intangible cultural heritage is concerned will be important in resolving issues.

Keywords Deep sea mining · BBNJ treaty · Environmental law · International seabed authority · Cultural heritage

D. Currie (✉)
Globelaw, Christchurch, New Zealand
e-mail: duncanc@globelaw.com

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3.1 Introduction and Context

Deep sea mining (DSM) has the potential to impact underwater cultural heritage, both tangible and intangible. The international community adopted the Agreement under the United Nations Convention on the Law of the Sea on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction (BBNJ Agreement) in June 2023. The objective of the BBNJ Agreement is to ensure the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction (ABNJ) for the present and in the long term, through effective implementation of the relevant provisions of the Convention and further international cooperation and coordination. However, the BBNJ Agreement will also address cultural values in ABNJ, in the context of area-based management tools (ABMTs) including marine protected areas (MPAs) and environmental impact assessments (EIAs). It also includes the principle of the common heritage of humankind which is set out in the 1982 Law of the Sea Convention in Article 7(b).

The BBNJ Agreement will also have implications for any underwater cultural heritage affected by DSM activities under its focus on marine biodiversity, its provisions on EIAs including strategic environmental assessments (SEAs) and ABMTs, and for its specific recognition of cultural values. It also has implications for the positions of BBNJ Parties when participating in the International Seabed Authority (ISA) and other legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies (IFBs).

The BBNJ Agreement preamble notes that Parties desire to act as stewards of the ocean in ABNJ on behalf of present and future generations by protecting, caring for and ensuring responsible use of the marine environment, maintaining the integrity of ocean ecosystems, and conserving the inherent value of biodiversity of areas beyond national jurisdiction. The BBNJ Agreement also embraces transparency in a stand-alone Article 48, which includes facilitation of the participation of, and consultation with, Indigenous Peoples and local communities with relevant traditional knowledge, the scientific community, civil society, and other relevant stakeholders. Throughout the Agreement, traditional knowledge as well as transparency is embraced and mainstreamed.[1] Given that deep sea mining may impact Indigenous People's culture, the BBNJ focus on traditional knowledge has significance for deep sea mining (Mulalap et al., 2020). Similarly, the BBNJ Agreement in Article 44, in the context of capacity building and the transfer of marine technology, lists information dissemination and awareness-raising, including with respect to relevant traditional knowledge of Indigenous Peoples and local communities, in line with the free, prior, and informed consent of these Indigenous Peoples and, as appropriate, local communities. Indigenous cultural relationships to the seabed (Perez-Alvaro, 2023) have been taken into account in the context of DSM decisions in South Africa (Sustaining the Wild Coast v Minister of Mineral Resources and Energy, 2022) and New Zealand (Trans-Tasman Resources Ltd v Taranaki-Whanganui Conservation

[1] Traditional knowledge is referred to no less than 29 times in the BBNJ Agreement.

Board, 2021).[2] The issue of intangible cultural heritage has arisen in numerous contexts in deliberations of the ISA (see Chap. 4, this vol.).

The BBNJ Agreement applies to ABNJ (Article 3): the high seas and the Area (Article 1(2)). The Area is defined in the Convention to mean the seabed and ocean floor and subsoil thereof beyond the limits of national jurisdiction. Activities in the Area shall be organised, carried out, and controlled by the Authority on behalf of mankind as a whole under Article 153(1) of the LOSC. As such, the BBNJ Agreement does not apply directly to the continental shelf, including the extended continental shelf, but does apply to the high seas above an extended continental shelf, which can extend up to 150 Nautical Miles beyond an exclusive economic zone (EEZ).

In 2020, IUCN resolution 122 called for a moratorium on deep sea mining, a call which has since been joined by 37 States calling for a moratorium or precautionary pause (IUCN, 2020). This chapter addresses the relationship between BBNJ and the ISA as it stands today.

The United Nations Educational, Scientific and Cultural Organization (UNESCO) in terms of BBNJ is a relevant IFB with respect to tangible and intangible cultural heritage. The UNESCO Director-General is the Secretariat of the UNESCO Convention on the Protection of the Underwater Cultural Heritage. The UNESCO Convention for the Safeguarding of the Intangible Cultural Heritage likewise is assisted by the UNESCO Secretariat.

3.2 Requirements of the BBNJ Agreement

The BBNJ Agreement has a strong emphasis on traditional knowledge. In Article 13 it requires that Parties shall take legislative, administrative or policy measures, with the aim of ensuring that traditional knowledge associated with marine genetic resources (MGRs) in areas beyond national jurisdiction that is held by Indigenous Peoples and local communities shall only be accessed with the free, prior and informed consent or approval and involvement of these Indigenous Peoples and local communities. Such MGRs may be found in the deep-sea Area impacted or potentially impacted by deep sea mining.

Access to such traditional knowledge may be facilitated by the Clearing-House Mechanism. Access to and use of such traditional knowledge shall be on mutually agreed terms under Article 13. Thus, Indigenous Peoples and local communities when faced with issues relating to traditional knowledge relating to MGRs would be able to turn to the Clearing-House Mechanism or indeed the Conference of the Parties or the implementation and compliance mechanism.

[2] See paras 9, 172, noting that considering the proposed activity in terms of tikanga may indicate that material harm extends beyond the physical effects of a discharge, or that pollution can be spiritual as well as physical.

The BBNJ Agreement in Article 7 sets out general principles and approaches by which Parties shall be guided in order to achieve the objectives of the Agreement. Notable in the heritage context are the principle of the common heritage of humankind which is set out in the Convention (Article 7(b)) and an integrated approach to ocean management as well as the freedom of marine scientific research, together with other freedoms of the high seas. Also notable are the use of relevant traditional knowledge of Indigenous Peoples and local communities, where available and the respect, promotion and consideration of their respective obligations, relating to the rights of Indigenous Peoples or of local communities when taking action to address the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction. The BBNJ also contains numerous provisions requiring consultation with Indigenous Peoples and local communities, described below.

3.3 Area-Based Tools and Marine Protected Areas

Area-based management tools and marine protected areas are provided for in Part III of the BBNJ Agreement. The BBNJ Conference of the Parties (CoP) is mandated to establish ABMTs including MPAs (Article 19). Consultations would need to be held with the ISA when a proposed ABMT involves the international seabed Area (Article 19(2)), as well as UNESCO when underwater cultural heritage or intangible cultural heritage are involved, and the views of these IFBs (Article 21(1)) invited including on the proposal's merits, scientific input, existing measures adopted by the ISA for the relevant area or for adjacent areas, views regarding any aspects of the measures and other elements for a draft management plan identified in the proposal that fall within the competence of the ISA, and views regarding any relevant additional measures that fall within the competence of the ISA.

Article 25(1) of the BBNJ Agreement provides that Parties must ensure that activities under their jurisdiction or control that take place in ABNJ are conducted consistently with the decisions adopted under Part III. This would, for example, apply to sponsoring States which would need to ensure activities taking place in areas under contract with the ISA are consistent with ABMTs, including MPA decisions made under Part III. So, where an MPA objective includes the protection of cultural values, Parties to BBNJ need to act both within the ISA and bodies such as UNESCO to this end (Article 17(d)).

More specifically, under Article 25(4), Parties are to promote, as appropriate, the adoption of measures within bodies, which would again include the ISA and UNESCO, to support the implementation of the decisions and recommendations made by the Conference of the Parties under Part III. This could mean that BBNJ Parties would need to promote the adoption of measures in the ISA and UNESCO to protect cultural values. Cultural factors are specifically included in Annex I as

indicative criteria for the identification of areas. So, a proposal for an MPA could be made by a Party or Parties based at least in part on cultural values present in an Area.[3]

Parties are also to encourage non-Parties to adopt measures to support CoP decisions and recommendations on MPAs (Article 25(5)). Note that Indigenous People and local communities are to be consulted over any proposals for ABMTs (Article 19(2)), and that proposals shall be formulated on the basis of the best available science and scientific information and, where available, relevant traditional knowledge of Indigenous Peoples and local communities, taking into account the precautionary approach and an ecosystem approach (Article 19(3)). ABMT proposals are to include human activities in the area, including uses by Indigenous Peoples and local communities, and their possible impact, if any (Article 19(4)(c)), as well relevant scientific input and, where available, traditional knowledge of Indigenous Peoples and local communities (Article 19(4)(j)). Likewise, Indigenous People and local communities are to be consulted on submitted proposals (Article 21(1) and see Article 21(2)(c)).

The BBNJ CoP may take decisions on measures compatible with those adopted by the ISA, in cooperation and coordination with the ISA (Article 22(1)(b)). It may, where proposed measures are within the competence of the ISA, make recommendations to Parties to both BBNJ and to LOSC to promote the adoption of relevant measures through the ISA in accordance with its mandate (Article 22(1)(c)). In other words, the BBNJ CoP may recommend that BBNJ Parties, which are also parties to LOSC, promote the adoption of measures which will promote the objectives of the MPA, in accordance with the ISA's mandate. The same applies to parties to UNESCO with respect to heritage issues.

The BBNJ CoP is required to respect the competence of, and not undermine, bodies such as the ISA and UNESCO (Article 22(2)). The competence of the ISA is defined in terms of activities in the Area—meaning all activities of exploration for, and exploitation of, the resources of the Area.[4] The CoP is also to make arrangements for regular consultations to enhance cooperation and coordination with the ISA as well as coordination with regard to related measures adopted by the ISA and other IFBs such as UNESCO (Article 22(3)).

Where new MPAs are proposed and the proposal includes the Area, the ISA should be consulted (Article 19(2)) and invited by the BBNJ Secretariat to submit views, scientific input, information on existing measures and views on other matters (Article 21(2)(b)). As noted earlier, when underwater cultural heritage and/or intangible cultural heritage are at issue, UNESCO should likewise be consulted and invited to submit views. The CoP may take decisions on measures compatible with

[3] For proposals see BBNJ Agreement Art. 19.

[4] The competence of the ISA is provided in Article 153(1), which provides that 'activities in the Area shall be organized, carried out and controlled by the Authority on behalf of mankind as a whole in accordance with (Article 153) as well as other relevant provisions of (Part XI) and the relevant Annexes, and the rules, regulations and procedures of the Authority'. See 1982 Convention Art. 1(3). 'Resources' means all solid, liquid or gaseous mineral resources in situ in the Area at or beneath the seabed, including polymetallic nodules: Convention Art. 133(a).

those adopted by the ISA, in cooperation and coordination with the ISA (Article 22(1)(b)). The CoP may also, where proposed measures are within the competence of the ISA, make recommendations to BBNJ Parties and to the ISA to promote the adoption of relevant measures through the ISA, in accordance with its mandate (Article 22(1)(c)). The CoP shall respect the competence of, and not undermine the ISA, as well as UNESCO, as IFBs (Article 22(2)).

An issue may arise with respect to damage to underwater cultural heritage and/or intangible cultural heritage caused or threatened by mining activities directly on the seabed or by sediment plumes generated by any deep sea mining and occurring in the water column. If such an activity or proposal was brought to the attention of the CoP, one response could be to take emergency measures, under Article 24, but only if it was or threatened to be as a human-caused disaster which has caused, or is likely to cause, serious or irreversible harm to marine biological diversity of ABNJ (Article 24(1)). Any such decision could only be taken if, following consultation with the ISA and UNESCO, the serious or irreversible harm cannot be managed in a timely manner through the application of the other Articles of the BBNJ Agreement or by the ISA or UNESCO (Article 24(2)).

3.4 Environmental Impact Assessments

The BBNJ Agreement operationalises the requirements of Article 206 of LOSC by establishing processes, thresholds and other requirements for conducting and reporting assessments by Parties to ensure that activities covered by Part IV are assessed and conducted to prevent, mitigate and manage significant adverse impacts for the purpose of protecting and preserving the marine environment (Article 27(b)). Article 31 requires that relevant traditional knowledge of Indigenous Peoples and local communities is taken into account during screening, scoping and impact assessment and evaluation, as well as that social and cultural impacts are to be included in EIA scoping reports, as well as reviews under Article 37, and Article 35 requires monitoring of social and cultural impacts.

Article 29 of the BBNJ Agreement specifically provides for the relationship between the BBNJ Agreement and EIA processes under bodies such as the ISA. The CoP is to establish mechanisms for cooperation between the Scientific and Technical Body (STB) and IFBs such as the ISA (Article 29(2)).

Secondly, in an intensively negotiated provision, the Agreement provides that if the Party with jurisdiction or control over a proposed activity (such as a sponsoring State, being a member State that allows a private entity to conduct seabed mining activities on its behalf) determines that the impacts have been assessed in accordance with the requirements of a body such as the ISA and that either:

(i) the assessment already undertaken for the planned activity is equivalent to the one required under Part IV, and the results of the assessment are taken into account; or

(ii) the regulations or standards of the relevant legal instruments or frameworks or relevant global, regional, subregional or sectoral bodies arising from the assessment were designed to prevent, mitigate or manage potential impacts below the threshold for environmental impact assessments under this Part, and they have been complied with, then a BBNJ EIA need not be completed. The first requires an equivalence test. As EIAs are by their nature procedural, it seems logical that at least a procedural equivalence test be applied.

The second test requires that there are regulations or standards in place, that they were designed to prevent, mitigate or manage potential impacts below the threshold for environmental impact assessments under Part IV, and they have been complied with.

Regardless of whether an assessment passes either of the Article 29 tests, the Party concerned shall ensure that the EIA report is published through the BBNJ Clearing-House Mechanism. Unless the planned activities that meet the first test are subject to monitoring and review, Parties shall monitor and review the activities and for EIAs that pass the equivalence test, monitor and review and ensure that the monitoring and review reports are published through the Clearing-House Mechanism (Article 29(5) and (6)).

3.4.1 Regional Environmental Management Plans (REMPs)

The ISA sees regional environmental management plans (REMPs) as an essential element of its strategy for the protection of the marine environment, as reflected in its Strategic Plan for the period 2019–2023 (ISBA/24/A/10). Specifically, they are intended to provide area-based and other management tools and are intended to provide goals, rules, and management tools for a specific region where any mining could occur (ISA Council, 2022a). To date the only existing REMP is the environmental management plan (EMP) for the Clarion Clipperton Zone (CCZ) (ISA Legal and Technical Commission, 2011), and REMPs are under development for the North Mid-Atlantic Ridge (ISA Council, 2022b) and the Northwest Pacific and Indian Oceans.[5] The draft REMP for the North Mid-Atlantic Ridge would require that the REMP pays due regard to any human remains, archaeological or cultural objects as set out in Article 149 and relevant Authority regulations (ISA Council, 2022b, part III). No similar provision is included in the only REMP existing to date, the CCZ EMP. Under the CCZ EMP, the ISA has established as ABMTs Areas of Particular Environmental Interest (APEIs), seabed areas closed to mining activities,

[5] See ISA at https://www.isa.org.jm/protection-of-the-marine-environment/regional-environmental-management-plans/. See https://www.isa.org.jm/protection-of-the-marine-environment/regional-environmental-management-plans/other-regions/ for details of REMP development in regions other than the CCZ.

under its Clarion-Clipperton Zone Environmental Management Plan (Blanchard & Gollner, 2022).

3.4.2 Strategic Environmental Impact Assessments

Any strategic environmental impact assessment (SEA) (Article 39) conducted under BBNJ should assess the potential effects of plans or programmes, as well as of alternatives, on the marine environment (Article 39(1)), and should collate and synthesise the best available information about the area or region, assess current and potential future impacts and identify data gaps and research priorities (Article 39(2)), as well as take into account any relevant SEAs already carried out (Article 39(3)). A SEA should take into account cultural and heritage values.

3.5 Capacity Building and the Transfer of Marine Technology

Capacity building and the transfer of marine technology are provided in Part VI of the BBNJ Agreement and are intended to be supportive of the other parts of the Agreement (Article 40). International cooperation is an important way that the Part VI objectives are to be realised (Article 41), including with Indigenous Peoples and local communities as holders of traditional knowledge (Article 41(2)). A capacity-building and transfer of marine technology committee reports to the BBNJ CoP (Article 46). Where concerns arise, or may arise, with respect to cultural heritage, in the context of capacity building and the transfer of marine technology, they could be brought up in the committee by way of bringing a matter to the attention of the CoP.

3.6 The Relationship Between BBNJ and the ISA

An important provision relevant to the relationship between BBNJ and the ISA as well as other IFBs such as UNESCO is Article 5(2) which provides that the BBNJ Agreement shall be interpreted and applied in a manner that does not undermine IFBs and that promotes coherence and coordination with IFBs. The BBNJ Agreement has a strong focus on international cooperation and consultation and includes some innovative and important international cooperation provisions. International cooperation is provided for in Article 8, which provides that Parties shall cooperate under the BBNJ Agreement for the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction, including

through strengthening and enhancing cooperation with and promoting cooperation among bodies. These would include such bodies as the ISA and UNESCO in the achievement of the objectives of the BBNJ Agreement. More specifically, Article 8(2) provides that Parties shall endeavour to promote, as appropriate, the objectives of the BBNJ Agreement when participating in decision-making in IFBs, again such as the ISA and UNESCO. So, when a question arises in BBNJ once it enters force with respect to either underwater cultural heritage, intangible cultural heritage or both, UNESCO would likely be a relevant IFB, and the consultation provisions of BBNJ would be applicable to UNESCO, as well as potentially to the ISA. BBNJ Parties would therefore need to promote BBNJ objectives, including with respect to IPLCs, in those bodies.

3.7 LOSC

Under Article 149 of the 1982 Convention, all objects of an archaeological and historical nature found in the Area shall be preserved or disposed of for the benefit of mankind as a whole, particular regard being paid to the preferential rights of the State or country of origin, or the State of cultural origin, or the State of historical and archaeological origin. This provision acts as a reinforcement of the BBNJ provisions on cultural values and impacts,[6] and it is notable that the State of cultural origin, as well as the State of origin or of historical and archaeological origin, be given particular regard.

3.8 Exploitation Regulations

The ISA is currently negotiating exploitation regulations, parts of which address underwater cultural heritage. But it is too early to assess what those provisions will be: Will there be an underwater cultural heritage committee? Will the regulations, if and when adopted, require free and prior informed consent by Indigenous People and local communities? Will the regulations recognise cultural heritage as such or only physical manifestations of cultural heritage?

[6] A similar provision in Article 303 for objects found at sea requires protection of objects of an archaeological and historical nature. Article 303 is without prejudice to other international agreements and rules of international law regarding the protection of objects of an archaeological and historical nature, and thus the two UNESCO Conventions are of relevance.

3.9 Conclusion

Protecting underwater cultural heritage under the BBNJ Agreement is likely to involve extensive consultation with both the ISA and UNESCO. Cultural matters as well as traditional knowledge are specifically included in both the ABMT and the EIA parts of the Agreement, but are also likely to arise in other contexts, including capacity building and the transfer of marine technology. Once BBNJ enters into force, international cooperation provisions including those with respect to the ISA where activities in the Area are concerned and UNESCO when underwater cultural heritage or intangible cultural heritage is concerned will be important in resolving issues.

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